

District-Bogura.

Md. Mostafizur Rahman and others
Accused-petitioners.
 -Versus-

The State
Opposite-party.
 Mr. Md. Golam Akter Zakir, Advocate
For the Accused-petitioners.
 Mr. Md. Saiefuddin Khaled, D.A.G with
 Mr. Md. Asaduzzaman, A.A.G with
 Mrs. Afifa Begum Swapna, A.A.G and
 Mr. Sarwar Akhtar Masud, A.A.G,
For the State opposite-party.

Present:

Mr. Justice Md. Nazrul Islam Talukder.

And

Mr. Justice Kazi Ebadoth Hossain

22.01.2024.

Heard the learned Advocate for the
 accused-petitioners and the learned Deputy
 Attorney-General for the State opposite-party
 and perused the application along with
 prosecution materials annexed therewith.

Records need not be called for.

Let a Rule be issued calling upon the opposite-party to show cause as to why the accused-petitioners should not be enlarged on bail in Adamdighi Police Station Case No.09 dated 09.11.2023 corresponding to G.R No.258 of 2023 under Section 15(3) of the Special Powers Act, 1974 read with Sections 3/6 of the Explosive Substances Act, 1908 (amended in 2002) along with Sections 143/427 of the Penal Code, 1860 now pending in the Court of learned Chief Judicial Magistrate, Bogura and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Subject to disposal of the Rule, let the accused-petitioners namely 1) Md. Mostafizur Rahman son of Bodor Uddin, 2) Md. Fahim Hossen Khondoker son of late Anisur Rahman, 3) Md. Ruhul Amin son of Md. Rofiqul Islam enlarged on ad-interim bail in the above mentioned case for a period of 6(six) months from date, subject to furnishing adequate bail bond to the satisfaction of the learned Chief Judicial Magistrate, Bogura.

The accused-petitioner is also directed to submit an undertaking to the effect that he will never participate in any subversive activity such as vandalizing and setting fire to any property belonging to the State.

The learned Judge of the Court below shall be at liberty to cancel the bail of the accused-petitioners if they misuses the privilege of bail in any manner.

However, the accused-petitioners shall put in 2(two) sets of requisites within 7 (seven) days, for service of notice of the Rule upon the opposite-party in normal course as well as by registered post with A/D as per HCD Rules.

Office shall not issue any certified copy of this order to the petitioners unless requisites are put in.